

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
ZANE SHEPHERD & REGINALD SHEPHERD,

STIPULATION OF
DISCONTINUANCE
WITH PREJUDICE

Plaintiff(s),

Index #: 22088-2012

-against-

THE CITY OF NEW YORK, P.O. ORTIZ and P.O. RAMOS

NYC Law Dep't #:
2012-039683

Defendant(s).

NYC Comptroller #:
2011PI037802

----- X
IT IS HEREBY STIPULATED AND AGREED, by and between the attorneys of record for all the parties to the above-entitled action, that whereas no party is an infant or an incompetent person for whom a committee has been appointed or conservatee and no person not a party has an interest in the subject matter of the action, the above entitled action

☒ is discontinued **as to all parties**, including all cross-claims and counterclaims, with prejudice and without costs or disbursements to any party.

[If this stipulation is to discontinue the entire action, including all cross-claims and counterclaims, X the box above and cross out the language in the following paragraph. If this stipulation discontinues as to only some of the defendants, X the box below, insert the names of all other defendants the action is being discontinued and cross out the language in the above paragraph.]

☐ is discontinued with prejudice **as against only defendant(s) CITY OF NEW YORK**, and

without costs or disbursements to either parties.

A copy of this stipulation shall be deemed an original for all purposes and may be filed with the Clerk of the Court without further notice to any party.

Dated: Bronx, NY
March 23, 20 15

1) [Signature]
Attorney(s) for Plaintiff(s)
BELOVIN & FRANZBLAU, LLP
2311 White Plains Road

Bronx, New York, 10467
Tel: (718) 655-2900

By: _____

Sign above/ DAVID A. KARLIN
print below

2) [Signature] for
Zachary W. Carter, Esq
Corporation Counsel
Attorney for Defendant(s)
CITY OF NEW YORK and

198 East 161st
Bronx, New York, 10461
Tel: (212) 503-5067

By: [Signature]

COUNTY CLERK
BRONX COUNTY

15 MAY -5 AM 9:03

RECEIVED



Zachary W. Carter
Corporation Counsel

THE CITY OF NEW YORK
LAW DEPARTMENT
TORT DIVISION
BRONX COUNTY OFFICE
198 EAST 161ST STREET, 3RD FLOOR
BRONX, NY 10451-3513

PHONE: (718) 588-5200
FAX: (718) 590-2686

Date: 4/17/2015

Bronx County Clerks Office Rm 118
851 Grand Concourse
Bronx, New York 10451

Re: Shepherd, Zane and Shepherd, Reginald v. The City of
New York
Index No: 22088/2012
City File No. 2012-039683

Dear Sir/Madam:

The Corporation Counsel is exempt from any payment of fees, court costs, or certification costs relating to the filing or transfer of an action, and any fees for the issue of an index number, perfection of an appeal, request for judicial intervention, stipulation of discontinuance or any other court fee relating to the defense of an action against the municipality of New York.

Accordingly, please accept the above papers. Thank you for your attention to this matter.

Sincerely yours,

A handwritten signature in black ink, appearing to read "Tisha Johnson", written over a horizontal line.

Tisha Johnson
Clerical Associate III